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Case Name: *Anna Mungaray Revocable Trust dated January 21, 2022*

Case No.: 23PR196178

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

After significant litigation in dockets 23PR196178 and 23CV409626,¹ the beneficiaries of the Anna Mungaray Revocable Trust, dated January 21, 2022 entered into a settlement agreement. On September 19, 2025, the court issued a written order approving the settlement agreement and reserving jurisdiction pursuant to Code of Civil Procedure section 664.6.

Currently before the court is a motion by Yvonne Drew (“Drew”), one of the beneficiaries, seeking to enforce one of the terms of the settlement agreement, namely, that Art Mungaray, Jr. (“Trustee”), current trustee of the trust, will dismiss his petition for orders confirming trust assets filed December 5, 2023. The motion is unopposed.

DISCUSSION

At the outset, the court notes that Drew has not filed a proof of service evidencing that she served the motion on the other parties to the settlement agreement. While she has attached a proof of service to the proposed order, that proof of service only reflects service of the proposed order itself. Code of Civil Procedure section 1005, subdivision (b) requires that the motion and all documents supporting the motion be served 16 court days before the hearing. Rules of Court 3.1300(c) requires that a proof of service be filed with the court five court days before the hearing. Because Drew has not provided a proof of service evidencing that she served the motion and all supporting documents, the court cannot determine if Trustee has been properly served.

Additionally, Drew has not filed a memorandum of points and authorities in support of her motion. A party filing a motion is required to file a memorandum containing “a statement

¹ These dockets were consolidated on May 6, 2025.

of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rule 3.1113(a)&(b).) Accordingly, the motion is procedurally deficient.

Although Drew is proceeding in pro per, pro per litigants are held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, her pro per status does not excuse failure to comply with all applicable procedural rules. The motion must be, and is, DENIED WITHOUT PREJUDICE.

CONCLUSION

The motion is DENIED WITHOUT PREJUDICE.

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Calendar Line 2

Case Name: *Estate of Fred Townsend*

Case No.: 24PR198523

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the Court finds and orders as follows:

INTRODUCTION

Jeanne Elizabeth Downey (“Respondent”) initiated this case by filing a petition to for letters of administration seeking to be named administrator of the estate of Fred Townsend (“Decedent”), whom she asserted was her spouse. Letters of administration issued on February 3, 2025. On August 5, 2025, Alicia King (“Petitioner”), also claiming to be the spouse of Decedent, filed a petition to determine heirship. Petitioner passed away on August 12, 2025. On September 25, 2025, Respondent filed an answer to the petition to determine heirship and on January 21, 2026, Respondent filed an objection to the petition to determine heirship.

Currently before the court is a motion by the personal representative of Petitioner’s estate, Joseph King, III (“Movant”) seeking to substitute in a petitioner for the purposes of the petition to determine heirship and to file an amended petition reflecting the substitution. Respondent filed a late limited opposition arguing only that her defenses and challenges to the identity of the person who filed the petition survive despite the substitution.¹

¹ An opposition to a motion must be filed nine court days prior to the hearing on the motion. Here, the opposition was filed on May 19, 2026, fewer than nine court days before the hearing, which is scheduled for May 27, 2026. Nonetheless, the court has discretion to consider a late-filed paper and it will do so here. (Cal. Rules Ct., rule 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

DISCUSSION

I. Legal Background

A. Substitution of the Petitioner

An action for or against a decedent is not lost by reason of that person's death. (Code Civ. Proc., § 377.21.) The claims survive subject to the applicable limitations period. (Code Civ. Proc., § 377.20, subd. (a).) "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

B. Amendment of the Petition

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court "may, in the furtherance of justice," allow a party to amend any pleading. "It is well established that 'California courts have "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." [Citation.] Indeed, "it is a rare case in which 'a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.' "[Citation.]" [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. [Citation.]" (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]" (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

" 'Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . . . ' [Citations.]" (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. [Citation.]" (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) The court does not abuse its discretion by denying leave

to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

II. Merits of the Motion

Movant contends that he is the personal representative of Petitioner's estate and he has attached to his motion as Exhibits B and C an order for probate and letters of administration issued to him. He has also provided Petitioner's death certificate as Exhibit A. Accordingly, Movant has established he is entitled to substitute into the action. (Code Civ. Proc., § 377.31.)

As to the amendment, Movant seeks to file an amended petition to determine heirship to reflect the fact that he is now the petitioner. The court notes that Movant has bolded certain portions of the petition that were not previously bolded but he has otherwise kept the language of the petition intact save for the information regarding his substitution. The court finds the amendment proper.

Respondent has filed a limited opposition in which she argues that there is reason to believe that Petitioner did not actually file the petition to determine heirship and asserting that she has raised various defenses to the petition. She seeks a ruling that these arguments and defenses are preserved despite the substitution of Movant as petitioner. The court will make such an order. "[A] successor in interest under section 377.11 'step[s] into [the decedent's] position,' as to a particular action. [Citation.]" (*Exarhos v. Exarhos* (2008) 159 Cal.App.4th 898, 906.) Thus, the defenses that were asserted against Petitioner, if successful, may also bar Movant from relief.

CONCLUSION

The motion is GRANTED. Respondent's defenses and the issue of whether Petitioner actually filed the petition to determine heirship are hereby preserved for determination in connection with the petition to determine heirship or any motion in which those issues may be properly raised

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Calendar Line 3

Case Name: *Estate of Marie Rosenblatt*

Case No.: 25PR199986

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

INTRODUCTION

On April 14, 2025, attorney Marie Rosenblatt, Esq. (“Decedent”) passed away. Pursuant to a will drafted in 1976, the court issued letters of administration to Sister Susan Sanders, RSM following her successful petition for probate.

Currently before the court is a motion, by Charles J. Nagaele, Esq. (“Movant”), an attorney who worked with Decedent on the marital dissolution case, to be appointed “partial” practice administrator of the deceased attorney’s practice solely as to one specific IOLTA account containing the proceeds of a home sold in the marital dissolution case. The motion is unopposed. The motion previously came on for hearing and was continued to May 27, 2026 so that the court could receive further information from Movant. Movant has now filed a supplemental declaration.

DISCUSSION

Movant asserts that he was co-counsel with Decedent in *Martha Rogers v. Alvin Rogers*, 21FL003805, a marital dissolution case. During the pendency of the case, Decedent placed \$250,000, consisting of the proceeds of the sale of the marital home, into an IOLTA account. That case has now resulted in a judgment of dissolution and the proceeds are ready to be distributed pursuant to the judgment. Movant seeks to be named partial practice administrator over the IOLTA account.

Movant relies on Probate Code section 9674, which provides, in pertinent part, “The personal representative of the estate of a deceased attorney who was engaged in a practice of law at the time of his or her death or other person interested in the estate may bring a petition

for appointment of an active member of the State Bar of California to take control of the files and assets of the practice of the deceased member.” (Prob. Code, § 9764, subd. (a).)

In its prior order on this matter, the court explained

Probate Code section 9674, subdivision (a) provides that the personal representative should be making the request. Here, a personal representative, Sister Sanders had been appointed. It appears that Sister Sanders has been served with the motion and she filed no opposition. However, it is unclear whether Sister Sanders concurs in the motion. Additionally, Decedent’s sister, Carolyn Rosenblatt, has filed a petition to revoke probate of the 1976 will and to remove Sister Sanders as personal representative on the ground that a later estate plan exists. The petition seeks appointment of Carolyn Rosenblatt as personal representative. Again, it appears that Carolyn Rosenblatt has been served with the motion and she has filed no opposition but it is unclear whether she concurs in the relief requested in the motion.

The court may be able to overlook the fact that it is not the personal representative who made the motion but it is unclear whether an additional practice administrator will need to be appointed for the remainder of Decedent’s practice, if any. If one person were to be named practice administrator for the entire practice, it would appear that that individual should be in charge of the entire practice including the IOLTA account. Additionally, Probate Code section 9764, subdivision (f) provides that “[t]he court shall appoint the attorney nominated by the deceased member in a writing, including, but not limited to, the deceased member’s will, unless the court concludes that the appointment of the nominated person would be contrary to the best interests of the estate or would create a conflict of interest with any of the clients of the deceased member.” Accordingly, the court requests information regarding whether Decedent left written instructions regarding practice administration in the event of her death and whether appointment of an additional practice administrator is contemplated. This may require Movant to meet and confer with counsel for Sister Sanders and Carolyn Rosenblatt.

Finally, Movant seeks an order that his compensation is to be paid from the funds in the IOLTA account. But, the statute provides, “The practice administrator shall be compensated only upon order of the court making the appointment for his or her reasonable and necessary services. *The law practice shall be the source of the compensation for the practice administrator unless the assets are insufficient in which case, the compensation of the practice administrator shall be charged against the assets of the estate as a cost of administration.* The practice administrator shall also be entitled to reimbursement of his or her costs.” (Prob. Code, § 9764, subd. (g), italics added.) Movant had provided no authority indicating that the compensation may be paid from the IOLTA account itself and the funds contained therein would appear to belong to the clients. The court notes that Movant has provided declarations of the clients, Alvin Rogers and Martha Rogers concurring in the motion. But, the declarations do not address payment of Movant’s compensation from the IOLTA account. Accordingly, the court requests either

supplemental briefing regarding the authority for the request for compensation from the IOLTA account or evidence that the clients have been informed that the compensation will be paid from the IOLTA account and consent to same despite Probate Code section 9764, subdivision (g).

The court requested supplemental briefing or a supplemental declaration regarding the above issues.

Movant filed a supplemental declaration establishing that Sister Sanders and Carolyn Rosenblatt each have no objection to the appointment of Movant as partial practice administrator. (See Second Supplemental Declaration in Support of Motion [], ¶ 1, Ex. A.) Movant also declares that he will take no compensation for his services as partial practice administrator. (*Id.* at ¶ 3.) Accordingly, the court will GRANT the motion.

CONCLUSION

The motion for appointment of a partial practice administrator is GRANTED. Charles J Naegele, Esq. is hereby appointed as Partial Practice Administrator only for the client funds held in trust for Alvin O. Rogers and Martha G. Rogers, California State Bar IOLTA account in JP Morgan Chase Bank, Account Number: 000000780579683 (and related non-IOLTA investment accounts) in the amount of \$250,000.00 plus interest, if any.

Charles J. Naegele, Esq. is authorized to take control of and manage the above-identified trust account(s), including the authority to:

a. Control and Management: Take exclusive control and management of only the client funds held in trust for Alvin O. Rogers and Martha G. Rogers, California State Bar IOLTA account in JP Morgan Chase Bank, Account Number: 000000780579683 (and related non-IOLTA investment accounts) attorney trust account(s);

b. File Access: Access all files, records, and documents relating to the trust account(s), including bank statements, investment reports, account registrations, and client disbursement records;

c. Client Notification and Court Ordered Distribution: Identify all clients whose funds are held in trust and provide timely notice of the appointment of the Practice Administrator and distribute those funds according to the existing Santa Clara County Superior Court Family Court Order.

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